

1787 · 1803 · 1837 • UNITED STATES GOVERNMENT & CIVICS (GC) • COURSE
STANDARD EDITION

GOVERNMENT HACK™

TROOPTOTEACHER TECHNOLOGIES

UNIT 5

The Judicial Branch

COURSE STANDARD EDITION

GC.19–GC.22 • Tennessee U.S. Government & Civics Standards • Grades 9–12

★ TENNESSEE CONNECTION

Tennessee has sat on the nation's highest bench. John Catron, who had served as Chief Justice of Tennessee's own Supreme Court, was appointed to the U.S. Supreme Court in 1837 and served until his death in Nashville in 1865 — the first Tennessean to help decide what the Constitution means (GC.20).

One common workbook designed for learner variability. Every student works toward the same Tennessee standards; supports vary the means, not the goal or the ceiling.

Release-Ready · Pilot Edition

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Government Hack™ — Unit 5: The Judicial Branch, Course Standard Edition.

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Source integrity. Every primary source in this unit is public-domain and cited to its holding repository (National Archives, Library of Congress). See the Source Library.

Reading provenance (district-clear). Close-Read passages are labeled “Government Hack-authored instructional synthesis” — they build on the standard record and are not presented as primary sources.

Framework stack. This workbook anchors to Tennessee U.S. Government & Civics standards GC.19–GC.22 and the Social Studies Practices (SSP.01–SSP.06), and is designed on CAST UDL 3.0 and an MTSS support model.

Pacing. Each standard is built for **one 45-minute class period**. Each activity shows a  ~ **minutes** estimate at its heading. There is more here than one period holds — your teacher chooses which activities you do in class; the rest may become warm-ups, stations, or homework.

Table of Contents

Tennessee Standards & SSP Crosswalk

Each standard below is taught to the full Course Standard expectation; the Social Studies Practices are embedded in every activity cycle.

Standard	Focus	Student Deck slides
GC.19	Article III & Judicial Power	2-8
GC.20	Selecting & Confirming Justices	2-8
GC.21	Judicial Review & Marbury v. Madison	2-8
GC.22	Deciding What Is Constitutional	2-8

Social Studies Practices (SSP.01-SSP.06)

SSP.01 Gather/evaluate sources · SSP.02 Critically examine a primary source · SSP.03 Synthesize evidence · SSP.04 Construct/communicate argument · SSP.05 Develop historical awareness · SSP.06 Chronological/spatial reasoning. Each Close Read, Primary Source/Data, and CER activity names the practices it builds.

Accessibility, UDL & Accommodations Matrix

One firm learning goal per standard; flexible, universal means. Supports are available by design and never lower the goal. They work alongside — never in place of — required IEP or 504 accommodations.

Universal support	What it is	Where it appears
CORE PATH	Essential instruction every student completes	Every activity
LANGUAGE SUPPORT	Vocabulary, pronunciation, Spanish cognates	Word Bank, Guided/Light Backs
RESPONSE CHOICE	Write, say/record, or diagram	Every activity
SUPPORT OPTION	Optional scaffold that keeps the goal	Guided Support Back, Primary Source
PROGRESS CHECK	Quick DOK-2/3 check to guide reteach/extend	Cornell Notes, Practice Quiz
EXTENSION	Deeper challenge once the goal is met	Extension Bank, CER

How CAST UDL 3.0 is visible in this workbook

Multiple means of Engagement (response choice, relevance via Tennessee Connection), Representation (Word Bank, pronunciation, Spanish, Close-Read supports), and Action & Expression (write/say/diagram, Frayer, CER). No fixed-track labels appear.

My Support Plan (optional — you choose)

Supports are available by design. Check the ones you might try; you can change your mind any time.

Support I might use	When it would help me
Word Bank + Spanish column	
Guided or Light Support Back	
Response choice (say/record or diagram)	
Sentence frames / Rehearsal Lab	

How to Use This Workbook

Each standard runs the same seven-activity cycle: (1) Vocabulary Word Bank, (2) Vocabulary Studio, (3) Direct-Teaching Cornell Notes with optional Guided and Light Support Backs, (4) Close Read, (5) Primary Source / Data Analysis, (6) Core Application Practice Quiz, (7) Constructed Response (CER). Work the CORE PATH; reach for SUPPORT OPTIONS as needed.

Label legend — these appear throughout every standard cycle

Label	Meaning
CORE PATH	The essential instruction every student completes.
SUPPORT OPTION	An optional scaffold that keeps the goal, not lowers it.
LANGUAGE SUPPORT	Vocabulary, pronunciation, and Spanish cognates for access.
RESPONSE CHOICE	Show learning by writing, saying/recording, or diagramming.
PROGRESS CHECK	A quick DOK-2/3 check that guides reteach or extend.
EXTENSION	A deeper challenge once the goal is met.

Before You Begin — Set a S.M.A.R.T. Goal

Strong learners set goals — but a goal only helps if it is built well. First learn how, then write yours.

WHAT MAKES A GOAL STRONG? Build it S.M.A.R.T.

S — Specific: say exactly what you will be able to do (“explain how a bill becomes law,” not “do well”).

M — Measurable: how will you PROVE it? — a score, a diagram, or teaching a partner.

A — Achievable: a real stretch you can reach with effort — not too easy, not impossible.

R — Relevant: it connects to this unit’s big question.

T — Time-bound: name WHEN — “by the end of this unit.”

SEE THE DIFFERENCE

Weak: “I want to do good in government.” (vague — nothing to measure)

S.M.A.R.T.: “By the end of this unit I can explain how the three branches check each other, and prove it by teaching a partner and scoring 80%+ on the check.”

This unit’s big question: How can unelected judges check the other branches — and what limits their power?

BUILD YOURS — write each piece on the lines, then combine them at the bottom

Fill in each part of your goal. Use the lines.

Part of my goal	Write your piece on the lines
S — Specific: what exactly will I be able to do?	_____ _____
M — Measurable: how will I prove it? (a score, a diagram, teaching a partner)	_____ _____
A — Achievable: what effort will it take to reach it?	_____ _____
R — Relevant: how does it connect to the big question above?	_____ _____
T — Time-bound: by when?	_____ _____

PUT IT TOGETHER — my S.M.A.R.T. goal in one or two sentences:

Standard GC.19 — Article III & Judicial Power

TN Academic Standard GC.19: Analyze Article III of the U.S. Constitution as it relates to judicial power, including the length of terms and the jurisdiction of the U.S. Supreme Court. (—)

LEARNING TARGETS — I can...

- I can analyze Article III — the judicial power, the tenure of judges, and the jurisdiction of the Supreme Court..

Lenses for this standard: Civic Structure

CORE PATH — the same for every student

Every student works this standard at the same rigor: analyze the sources and vocabulary, then show what you learned on the Practice Quiz and the CER. Check yourself against the learning targets on the Cornell Notes page. Supports for each step are on the back of this page.

SET YOUR GOAL (self-direction)

My goal for this standard — what will I be able to do, and how will I show it? (Need help? See the back of this page.)

HOOK — think before you dig in

These nine officials never face an election, can't be fired for their rulings, and keep their jobs for life. Why would a democracy design a branch like that?

ACTIVATE — what do you already know or wonder?

Jot what you already know or want to find out about this standard. You'll come back to it.

FIRST IMPRESSIONS — before you dig in (you'll revisit this at the end)

In your own words: what do you think this standard is about, and why might it matter to you or your community? Write 2–3 sentences.

Getting Started — supports for this page — GC.19

WHAT “CORE PATH” MEANS

Everyone learns the same standard at the same level. “Support options” are just extra ways in — sentence starters, an example, a partner, or recording your answer. They help you reach the bar; they never lower it.

SET YOUR GOAL — how to write a strong one

Example goal: “By the end of this standard I can explain ___ and prove it by scoring 80%+ on the quiz.”

How to build it: name what you’ll DO, then how you’ll PROVE it, then WHEN.

Sentence starters: “I want to be able to...” “I’ll show it by...” “By the end of this standard...”

HOOK — sentence starters

“I think the big question is...” “This connects to...” “I wonder why...” “At first I believe...”

ACTIVATE — what it means & how to answer

What it means: “Activate” = wake up what you ALREADY know before you learn more.

Sentence starters: “I already know...” “This reminds me of...” “I want to find out...”

FIRST IMPRESSIONS — what to write

Just your honest first take — there is no wrong answer. Say what you THINK the standard is about and why it might matter to you, your family, or your community. You’ll come back and improve it at the end.

KEY WORDS TO WATCH FOR

Jurisdiction · Life Tenure (Good Behaviour) · Appellate Jurisdiction

NOW TRY IT — draft your goal using a starter above

Write a first draft here, then copy your best version onto the front. Aim for: what you’ll DO + how you’ll PROVE it + WHEN.

Activity 1 — Vocabulary (Part A: Reference / Word Bank) — GC.19 ~10 min

Use this word bank throughout the standard. The Spanish column supports access, not translation of assessment.

Term	Student-friendly meaning	Spanish
Jurisdiction	The authority of a court to hear and decide a case; the Supreme Court has both original and appellate jurisdiction under Article III.	jurisdicción
Life Tenure (Good Behaviour)	Federal judges hold office 'during good Behaviour' — effectively for life — so they can decide cases free from political pressure.	cargo vitalicio (buena conducta)
Appellate Jurisdiction	The authority of a higher court to review and revise the decision of a lower court; most Supreme Court cases arrive this way.	jurisdicción de apelación

LANGUAGE SUPPORT

Pronunciations: Jurisdiction (joor-is-DIK-shun); Life Tenure (Good Behaviour) (lyfe TEN-er); Appellate Jurisdiction (uh-PEL-it).

VOCABULARY SELF-CHECK • Knowledge Rating

Rate each term NOW in pencil, then again at the END — growth is the goal; no penalty for “never seen it.”

Term	1 • never seen it	2 • heard it	3 • can use it	4 • can teach it
Jurisdiction				
Life Tenure (Good Behaviour)				
Appellate Jurisdiction				

MAKE IT YOURS (RESPONSE CHOICE): choose ONE term above and show you own it — write a sentence, sketch it, or give a real-world example.

QUICK WRITE

Which of these terms do you think will matter MOST for this standard, and why? You'll revisit this at the end.

Activity 2 — Vocabulary Studio (Frayer-inspired) — GC.19

~7 min

RESPONSE CHOICE — three ways to complete each studio**WRITE:** fill in the four boxes below in your own words.**SAY IT:** explain the term aloud to a partner or your teacher, or record a short voice note — say the term, its meaning, and one example.**DIAGRAM:** sketch or map the term in the Sketch Studio on the back of this page.**PRIORITY TERM 1 Jurisdiction** • ES: jurisdicción**Word-bank meaning to build on:** The authority of a court to hear and decide a case; the Supreme Court has both original and appellate jurisdiction under Article III.

Definition (in your own words)	Characteristics
Examples	Non-examples

Use it to explain

Write one sentence that uses “Jurisdiction” to explain this standard.

PRIORITY TERM 2 Appellate Jurisdiction • ES: jurisdicción de apelación**Word-bank meaning to build on:** The authority of a higher court to review and revise the decision of a lower court; most Supreme Court cases arrive this way.

Definition (in your own words)	Characteristics
Examples	Non-examples

Use it to explain

Write one sentence that uses “Appellate Jurisdiction” to explain this standard.

CONNECT THE TERMS (UDL • build understanding)

How do these priority terms fit together? Write how one leads to or affects another on the lines — or map it in the Sketch Studio on the back.

Activity 2 — Sketch Studio (draw it or say it) — GC.19

SAY IT — pick one way to explain your terms aloud

Explain each priority term to a shoulder partner, then have them explain one back to you.

Or explain a term to your teacher during check-in.

Or record a 20–30 second voice note: say the term, what it means, and one real example.

Or stand and share one term with the class.

DIAGRAM: Jurisdiction

Draw, map, or symbolize this term — a picture, an icon, a quick web, or an example scene. Label your drawing.

DIAGRAM: Appellate Jurisdiction

Draw, map, or symbolize this term — a picture, an icon, a quick web, or an example scene. Label your drawing.

CONNECT THE TERMS — concept map

Put both terms in the box and draw arrows to show how one leads to, needs, or affects the other. Write a few words on each arrow.

Activity 3 — Direct Teaching Cornell Notes — GC.19 ~20 min

GC.19 — Article III & Judicial Power • Lean Student Deck slides 2-8 • direct-teaching slides 4-6

Your learning targets are on this standard's opening page — take notes that help you meet them.

Guiding cues	My notes — write your notes here
Key idea of this standard?	
One source that supports it?	
One check the courts provide?	
Key terms →	

DOODLE ZONE — draw your thinking (UDL · another way in)

Need another way in? Sketch the key idea, a quick timeline, or how the pieces connect. Words optional.

Cornell Notes — keep going, then process & check — GC.19

UDL · CHOOSE HOW YOU CAPTURE IDEAS (same target for everyone)

Keep going with your notes: WRITE on the lines, DRAW or diagram in the box, or do both — your choice. You may also record your notes aloud.

DRAW / DIAGRAM — sketch the idea, a timeline, or how the pieces connect

WRITE — keep taking notes on the lines

Key terms to list

Jurisdiction · Life Tenure (Good Behaviour) · Appellate Jurisdiction

Summary — In your own words (2-3 sentences)

PROGRESS CHECK · one question

Why does the Constitution give federal judges their offices 'during good Behaviour' — effectively for life?

- A. So they can decide cases free from political pressure
- B. Because judges cannot be removed for any reason
- C. So the President can replace them every four years
- D. Because judges must also serve in Congress

Commit before you move on — mark it, say it, or explain it aloud.

CHECK YOURSELF — how am I doing?

Which learning targets (on this standard's opening page) can you now meet? Tick the number; circle any you still need help with.

☐ **1**

My 12-15 word headline for this standard

Guided Support for the Cornell Notes — GC.19

These scaffolds support ONLY the Cornell notes — use them to take and process those notes. Optional and easy to set aside; not a separate assignment or a label.

Key vocabulary	What it means
Jurisdiction	The authority of a court to hear and decide a case; the Supreme Court has both original and appellate jurisdiction under Article III.
Life Tenure (Good Behaviour)	Federal judges hold office 'during good Behaviour' — effectively for life — so they can decide cases free from political pressure.
Appellate Jurisdiction	The authority of a higher court to review and revise the decision of a lower court; most Supreme Court cases arrive this way.

Break it into steps:

1) Name one cause or effect. 2) Give one piece of evidence. 3) Write one sentence explaining the link.

Sentence frame

One key cause/effect of article iii & judicial power was _____, shown by _____, which mattered because _____.

Modeled example (one worked note — yours will differ)

A key idea of article iii & judicial power was Jurisdiction: The authority of a court to hear and decide a case; the Supreme Court has both original and appellate jurisdiction under Article III.

GUIDED NOTE REHEARSAL LAB — practice ONE note, step by step

Build one good note here first, then copy it onto your Cornell page. Name the idea → give one piece of evidence → explain the link → write a short headline.

Step	Rehearse it here
Name it	_____ _____
Evidence	_____ _____
Explain	_____ _____
Headline	_____ _____

TRANSFER CHECK — move one rehearsed idea onto the front notes

Light Support for the Cornell Notes — GC.19

A lighter scaffold for the SAME Cornell notes. Try the notes first; reach for this only if you need it.

Key vocabulary	Finish the idea — “This term means ...”
Jurisdiction	
Life Tenure (Good Behaviour)	
Appellate Jurisdiction	

Guiding questions — answer on the lines below (or in your front notes):

- What does Article III vest in 'one supreme Court,' and who creates the lower courts?
- How does 'good Behaviour' tenure protect judicial independence?
- What is the difference between original and appellate jurisdiction?

WHICH CUE STILL NEEDS WORK?

Circle the Cornell cue from the front page you still need help with, and tell your teacher so we can go over it.

LIGHT PROCESSING LAB

Answer one guiding question from above in a full sentence, in your own words.

Activity 4 — Close Read — GC.19 ~15 min

Reading type: Government Hack-authored instructional synthesis. This is not a primary source. Builds SSP.03 (synthesize) and SSP.05 (historical awareness).

CORE PATH

Article III creates the judicial branch in a single sentence and leaves the rest to Congress: it vests 'the judicial Power' in 'one supreme Court' and lets Congress create the lower federal courts. To protect judicial independence, judges hold their offices 'during good Behaviour' — effectively for life — and their pay cannot be cut, so they can decide cases without fear of politics. Article III also defines the courts' jurisdiction, the authority to hear a case. The Supreme Court has original jurisdiction (a case starts there) in a few situations, but most cases reach it through appellate jurisdiction — an appeal from a lower court. A federal judge is removed only by impeachment, which is rare. The design trades democratic control for independence: judges answer to the Constitution, not to the voters.

LANGUAGE SUPPORT

Key terms to know first: Jurisdiction, Life Tenure (Good Behaviour). Read once for the gist, then again for evidence.

Text-dependent questions (answer in the Evidence Lab below or aloud):

1. What does Article III vest in 'one supreme Court,' and who creates the lower courts?
2. How does 'good Behaviour' tenure protect judicial independence?
3. What is the difference between original and appellate jurisdiction?

RESPONSE CHOICE: answer any question by writing in the Evidence Lab, saying/recording it, or diagramming it.

CLOSE-READ EVIDENCE LAB

Log evidence from the passage below.

Question / claim	Exact passage evidence	What the evidence shows

In one sentence — the main idea of this reading:

Spaced Retrieval & Reflection — GC.19

SPACED RETRIEVAL — quick recall (no notes)

Pull it up cold to strengthen memory, then check your notes — retrieval is what makes learning stick.

Recall prompt	Your answer (from memory)
One key term or fact from THIS standard	
One thing you learned in an EARLIER standard — how does it connect?	
One question you can answer now that you could not before	

CHECK YOURSELF — look back and score how it went

Got it right? ☐ Yes ☐ Partly ☐ Not yet **Answer it from memory?** ☐ Yes ☐ With a hint ☐ No

How did it feel? ☐ Confident ☐ Getting there ☐ Shaky — I'll revisit

CONNECT IT — spiral back

How does this standard connect to one you studied earlier, or to something in the world today? Write 2-3 sentences.

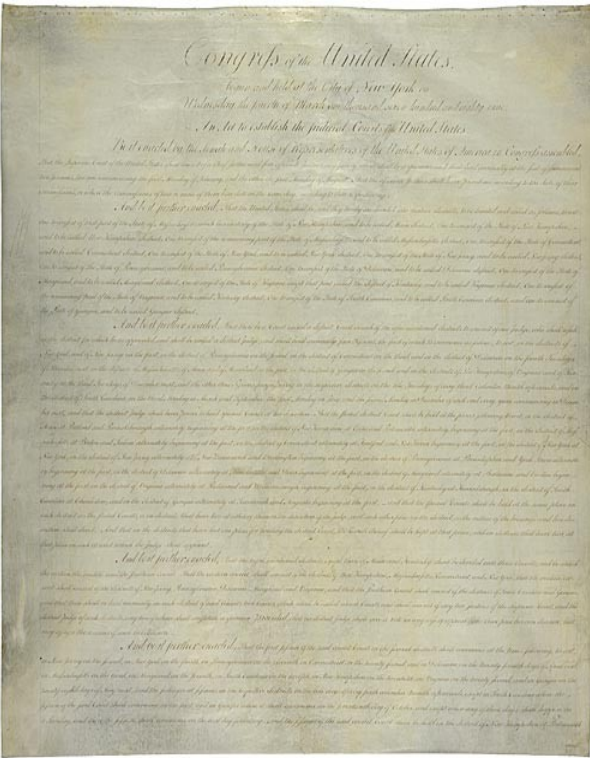
WHERE AM I? — plan your next step

Rate your understanding of this standard (1-4): ☐ 1 ☐ 2 ☐ 3 ☐ 4

One thing I will review or ask about before the quiz:

Activity 5 — Primary Source / Data Analysis — GC.19 ⌚ ~15 min

Primary source (document) — analyze it with HIPPO. Builds SSP.01–SSP.02.



Judiciary Act of 1789 • 1st U.S. Congress • 1789

Source: Wikimedia Commons • https://commons.wikimedia.org/wiki/File:Judiciary_Act_of_1789.jpg Public domain — U.S. federal statute, 1789 https://commons.wikimedia.org/wiki/File:Judiciary_Act_of_1789.jpg

FIRST LOOK — before you analyze

Jot 3–4 things you notice in the source (details, words, people, dates). No wrong answers.

HIPPO — analyze the source (prompt)	
H — Historical context: what was happening when this was created?	
I — Intended audience: who was meant to see or obey it?	
P — Purpose: why was it created?	

HIPPO — analyze the source (prompt)	Your analysis
P — Point of view: whose perspective does it reflect?	
O — Outside connection: how does it connect to this standard?	

Primary Source Analysis — go deeper — GC.19

SUPPORT OPTION (use if you need it)

Sentence frame: This source shows _____ because it _____, which reveals _____.

SOURCE SYNTHESIS — put it together (SSP.03)

In 2–3 sentences: what does this source reveal about this standard, and how do you know? Cite one specific detail from it.

THINK LIKE A HISTORIAN — corroborate or challenge (SSP.03)

Name ONE other source that could CONFIRM this one, and ONE way it could COMPLICATE or CHALLENGE it — or, whose voice is missing here?

SO WHAT? — why this source still matters today

In 1–2 sentences: why does this source still matter for understanding government today?

CONFIDENCE CHECK-IN

Rate your understanding of this standard (1–4): _____ One thing to revisit:

Activity 6 — Core Application: Practice Quiz — GC.19 ~8 min

RESPONSE CHOICE

Commit to an answer by marking it, saying it, or explaining it aloud before checking. Answer key is in the Teacher Guide (kept separate).

[DOK 1 • item u5-gc19-dok1-1 • pre-field-test]

Federal judges can be removed from office only by:

- A. A national election
- B. Impeachment
- C. The President alone
- D. A state legislature

[DOK 2 • item u1-gc19-dok2-tc • pre-field-test]

Why does the Constitution give federal judges their offices 'during good Behaviour' — effectively for life?

- A. So they can decide cases free from political pressure
- B. Because judges cannot be removed for any reason
- C. So the President can replace them every four years
- D. Because judges must also serve in Congress

STRETCH — think like a test-writer (open to all)

Write your OWN DOK-3 question for this standard, then a one-sentence answer key. Use the supports below — everyone can do this.

HOW TO WRITE A DOK-3 QUESTION (supports)

DOK-3 = strategic thinking: the reader must analyze, compare, evaluate, or justify using evidence — and there should be more than one defensible answer (not a fact you can just look up).

Sentence starters: “Why did _____ lead to _____?” • “Which mattered more — _____ or _____ — and why?” • “What is the BEST evidence that _____?” • “Evaluate whether _____.” • “Defend or challenge: _____.”

Frame: [Analyze / Evaluate / Justify] + [something from THIS standard] + “using evidence.”

Quick check: does my question make the reader THINK and use evidence? If yes, it's DOK-3.

NOW WRITE YOUR DOK-3 QUESTION HERE

YOUR ANSWER KEY — one clear, defensible sentence

Activity 7 — Constructed Response (CER) — GC.19 ⌚ ~15 min**BIG-QUESTION ORGANIZER (before you write) — How can unelected judges check the other branches — and what limits their power?**

Plan your argument here, then use it to write your claim, evidence, and reasoning below.

Plan your argument	Your quick notes (from this standard)
My claim (answer the prompt)	
Evidence 1 (a source or fact)	
Reasoning (why it proves the claim)	

CONSTRUCTED RESPONSE (CER) — builds SSP.04 Argumentation

Claim + Evidence + Reasoning: Is life tenure for federal judges a strength or a danger for democracy? Defend your claim with evidence.

Part	Write here
Claim	
Evidence (two specifics)	
Reasoning	

Constructed Response — self-grade & supports — GC.19

SELF-GRADE — score your own CER against the rubric below

Reread your response, then circle the level that best fits each part. Being honest here is how you level up.

Level	Claim	Evidence	Reasoning
4 — Strong	Precise, defensible	2+ accurate, specific	Explains HOW evidence proves the claim
3 — Proficient	Clear	2 accurate	Explains the link
2 — Developing	General	1 accurate	Partial link
1 — Beginning	Unclear / missing	Missing / inaccurate	No reasoning

MY SCORE

Claim: ____ / 4 Evidence: ____ / 4 Reasoning: ____ / 4 TOTAL: ____ / 12

SUPPORTS — sentence frames (use if you need them)

Claim: “_____ because _____.”

Evidence: “One example is _____ (from _____). Another is _____.”

Reasoning: “This proves my claim because _____, which shows _____.”

REVISE — make your lowest-scoring part stronger

Pick the part you scored lowest and rewrite it here — better:

Standard GC.20 — Selecting & Confirming Justices

TN Academic Standard GC.20: Explain the processes of selection and confirmation of Supreme Court justices. (—)

LEARNING TARGETS — I can...

- I can explain how a Supreme Court justice is nominated by the President and confirmed by the Senate..

Lenses for this standard: Civic Structure

CORE PATH — the same for every student

Every student works this standard at the same rigor: analyze the sources and vocabulary, then show what you learned on the Practice Quiz and the CER. Check yourself against the learning targets on the Cornell Notes page. Supports for each step are on the back of this page.

SET YOUR GOAL (self-direction)

My goal for this standard — what will I be able to do, and how will I show it? (Need help? See the back of this page.)

HOOK — think before you dig in

A single choice can steer the Constitution for forty years. That's why one open seat can freeze all of Washington. How does someone actually get the robe?

ACTIVATE — what do you already know or wonder?

Jot what you already know or want to find out about this standard. You'll come back to it.

FIRST IMPRESSIONS — before you dig in (you'll revisit this at the end)

In your own words: what do you think this standard is about, and why might it matter to you or your community? Write 2-3 sentences.

Getting Started — supports for this page — GC.20

WHAT “CORE PATH” MEANS

Everyone learns the same standard at the same level. “Support options” are just extra ways in — sentence starters, an example, a partner, or recording your answer. They help you reach the bar; they never lower it.

SET YOUR GOAL — how to write a strong one

Example goal: “By the end of this standard I can explain ___ and prove it by scoring 80%+ on the quiz.”

How to build it: name what you’ll DO, then how you’ll PROVE it, then WHEN.

Sentence starters: “I want to be able to...” “I’ll show it by...” “By the end of this standard...”

HOOK — sentence starters

“I think the big question is...” “This connects to...” “I wonder why...” “At first I believe...”

ACTIVATE — what it means & how to answer

What it means: “Activate” = wake up what you ALREADY know before you learn more.

Sentence starters: “I already know...” “This reminds me of...” “I want to find out...”

FIRST IMPRESSIONS — what to write

Just your honest first take — there is no wrong answer. Say what you THINK the standard is about and why it might matter to you, your family, or your community. You’ll come back and improve it at the end.

KEY WORDS TO WATCH FOR

Nomination · Confirmation · Senate Judiciary Committee

NOW TRY IT — draft your goal using a starter above

Write a first draft here, then copy your best version onto the front. Aim for: what you’ll DO + how you’ll PROVE it + WHEN.

Activity 1 — Vocabulary (Part A: Reference / Word Bank) — GC.20 ~10 min

Use this word bank throughout the standard. The Spanish column supports access, not translation of assessment.

Term	Student-friendly meaning	Spanish
Nomination	The President's naming of a person to fill a Supreme Court vacancy; the first step in seating a justice.	nominación
Confirmation	The Senate's approval of a nominee by majority vote, after a Judiciary Committee hearing — the 'Advice and Consent' required by the Constitution.	confirmación
Senate Judiciary Committee	The Senate committee that holds hearings and questions a Supreme Court nominee before the full Senate votes.	Comité Judicial del Senado

LANGUAGE SUPPORT

Pronunciations: Nomination (nom-ih-NAY-shun); Confirmation (kon-fer-MAY-shun); Senate Judiciary Committee (joo-DISH-ee-air-ee).

VOCABULARY SELF-CHECK · Knowledge Rating

Rate each term NOW in pencil, then again at the END — growth is the goal; no penalty for “never seen it.”

Term	1 · never seen it	2 · heard it	3 · can use it	4 · can teach it
Nomination	_____	_____	_____	_____
Confirmation	_____	_____	_____	_____
Senate Judiciary Committee	_____	_____	_____	_____

MAKE IT YOURS (RESPONSE CHOICE): choose ONE term above and show you own it — write a sentence, sketch it, or give a real-world example.

QUICK WRITE

Which of these terms do you think will matter MOST for this standard, and why? You'll revisit this at the end.

Activity 2 — Vocabulary Studio (Frayer-inspired) — GC.20

~7 min

RESPONSE CHOICE — three ways to complete each studio**WRITE:** fill in the four boxes below in your own words.**SAY IT:** explain the term aloud to a partner or your teacher, or record a short voice note — say the term, its meaning, and one example.**DIAGRAM:** sketch or map the term in the Sketch Studio on the back of this page.**PRIORITY TERM 1 Nomination** · ES: nominación**Word-bank meaning to build on:** The President's naming of a person to fill a Supreme Court vacancy; the first step in seating a justice.

Definition (in your own words)	Characteristics
Examples	Non-examples

Use it to explain

Write one sentence that uses “Nomination” to explain this standard.

PRIORITY TERM 2 Confirmation · ES: confirmación**Word-bank meaning to build on:** The Senate's approval of a nominee by majority vote, after a Judiciary Committee hearing — the 'Advice and Consent' required by the Constitution.

Definition (in your own words)	Characteristics
Examples	Non-examples

Use it to explain

Write one sentence that uses “Confirmation” to explain this standard.

CONNECT THE TERMS (UDL • build understanding)

How do these priority terms fit together? Write how one leads to or affects another on the lines — or map it in the Sketch Studio on the back.

Activity 2 — Sketch Studio (draw it or say it) — GC.20

SAY IT — pick one way to explain your terms aloud

Explain each priority term to a shoulder partner, then have them explain one back to you.

Or explain a term to your teacher during check-in.

Or record a 20–30 second voice note: say the term, what it means, and one real example.

Or stand and share one term with the class.

DIAGRAM: Nomination

Draw, map, or symbolize this term — a picture, an icon, a quick web, or an example scene. Label your drawing.

DIAGRAM: Confirmation

Draw, map, or symbolize this term — a picture, an icon, a quick web, or an example scene. Label your drawing.

CONNECT THE TERMS — concept map

Put both terms in the box and draw arrows to show how one leads to, needs, or affects the other. Write a few words on each arrow.

Activity 3 — Direct Teaching Cornell Notes — GC.20 ~20 min

GC.20 — Selecting & Confirming Justices • Lean Student Deck slides 2-8 • direct-teaching slides 4-6

Your learning targets are on this standard's opening page — take notes that help you meet them.

Guiding cues	My notes — write your notes here
Key idea of this standard?	
One source that supports it?	
One check the courts provide?	
Key terms →	

DOODLE ZONE — draw your thinking (UDL · another way in)

Need another way in? Sketch the key idea, a quick timeline, or how the pieces connect. Words optional.

Cornell Notes — keep going, then process & check — GC.20

UDL · CHOOSE HOW YOU CAPTURE IDEAS (same target for everyone)

Keep going with your notes: WRITE on the lines, DRAW or diagram in the box, or do both — your choice. You may also record your notes aloud.

DRAW / DIAGRAM — sketch the idea, a timeline, or how the pieces connect

WRITE — keep taking notes on the lines

Key terms to list

Nomination · Confirmation · Senate Judiciary Committee

Summary — In your own words (2-3 sentences)

PROGRESS CHECK · one question

Which two parts of government share the power to seat a new Supreme Court justice?

- A. The House and the Senate
- B. The President and the Supreme Court
- C. The President nominates and the Senate confirms
- D. The states and the Supreme Court

Commit before you move on — mark it, say it, or explain it aloud.

CHECK YOURSELF — how am I doing?

Which learning targets (on this standard's opening page) can you now meet? Tick the number; circle any you still need help with.

☐ **1**

My 12-15 word headline for this standard

Guided Support for the Cornell Notes — GC.20

These scaffolds support ONLY the Cornell notes — use them to take and process those notes. Optional and easy to set aside; not a separate assignment or a label.

Key vocabulary	What it means
Nomination	The President's naming of a person to fill a Supreme Court vacancy; the first step in seating a justice.
Confirmation	The Senate's approval of a nominee by majority vote, after a Judiciary Committee hearing — the 'Advice and Consent' required by the Constitution.
Senate Judiciary Committee	The Senate committee that holds hearings and questions a Supreme Court nominee before the full Senate votes.

Break it into steps:

1) Name one cause or effect. 2) Give one piece of evidence. 3) Write one sentence explaining the link.

Sentence frame

One key cause/effect of selecting & confirming justices was _____, shown by _____, which mattered because _____.

Modeled example (one worked note — yours will differ)

A key idea of selecting & confirming justices was Nomination: The President's naming of a person to fill a Supreme Court vacancy; the first step in seating a justice.

GUIDED NOTE REHEARSAL LAB — practice ONE note, step by step

Build one good note here first, then copy it onto your Cornell page. Name the idea → give one piece of evidence → explain the link → write a short headline.

Step	Rehearse it here
Name it	_____ _____ _____
Evidence	_____ _____ _____
Explain	_____ _____ _____
Headline	_____ _____ _____

TRANSFER CHECK — move one rehearsed idea onto the front notes

Light Support for the Cornell Notes — GC.20

A lighter scaffold for the SAME Cornell notes. Try the notes first; reach for this only if you need it.

Key vocabulary	Finish the idea — “This term means ...”
Nomination	
Confirmation	
Senate Judiciary Committee	

Guiding questions — answer on the lines below (or in your front notes):

- What are the two steps to seat a Supreme Court justice, and who controls each?
- What does the Senate Judiciary Committee do before the full Senate votes?
- Why are confirmations so high-stakes, given how long a justice can serve?

WHICH CUE STILL NEEDS WORK?

Circle the Cornell cue from the front page you still need help with, and tell your teacher so we can go over it.

LIGHT PROCESSING LAB

Answer one guiding question from above in a full sentence, in your own words.

Activity 4 — Close Read — GC.20 ~15 min

Reading type: Government Hack-authored instructional synthesis. This is not a primary source. Builds SSP.03 (synthesize) and SSP.05 (historical awareness).

CORE PATH

No one reaches the Supreme Court alone. When a seat opens, the President nominates a candidate — the first step. The nomination then goes to the Senate, which holds the power of 'Advice and Consent.' The Senate Judiciary Committee holds public hearings, questioning the nominee about their record and judicial philosophy, then recommends the nominee to the full Senate, which confirms by a majority vote. Because a justice serves 'during good Behaviour' — often for decades — a single appointment can shape the law long after the President who made it has left office. That high stakes has turned confirmations into some of the most closely watched political contests in Washington. The process is a deliberate check: the President chooses, but only the Senate can seat.

LANGUAGE SUPPORT

Key terms to know first: Nomination, Confirmation. Read once for the gist, then again for evidence.

Text-dependent questions (answer in the Evidence Lab below or aloud):

1. What are the two steps to seat a Supreme Court justice, and who controls each?
2. What does the Senate Judiciary Committee do before the full Senate votes?
3. Why are confirmations so high-stakes, given how long a justice can serve?

RESPONSE CHOICE: answer any question by writing in the Evidence Lab, saying/recording it, or diagramming it.

CLOSE-READ EVIDENCE LAB

Log evidence from the passage below.

Question / claim	Exact passage evidence	What the evidence shows

In one sentence — the main idea of this reading:

Spaced Retrieval & Reflection — GC.20

SPACED RETRIEVAL — quick recall (no notes)

Pull it up cold to strengthen memory, then check your notes — retrieval is what makes learning stick.

Recall prompt

Your answer (from memory)

One key term or fact from THIS standard

One thing you learned in an EARLIER standard — how does it connect?

One question you can answer now that you could not before

CHECK YOURSELF — look back and score how it went

Got it right? ☐ Yes ☐ Partly ☐ Not yet **Answer it from memory?** ☐ Yes ☐ With a hint ☐ No

How did it feel? ☐ Confident ☐ Getting there ☐ Shaky — I'll revisit

CONNECT IT — spiral back

How does this standard connect to one you studied earlier, or to something in the world today? Write 2-3 sentences.

WHERE AM I? — plan your next step

Rate your understanding of this standard (1-4): ☐ 1 ☐ 2 ☐ 3 ☐ 4

One thing I will review or ask about before the quiz:

Activity 5 — Primary Source / Data Analysis — GC.20 ⌚ ~15 min

Primary source (portrait) — analyze it with HIPPO. Builds SSP.01–SSP.02.



John Jay · Gilbert Stuart · 1794

Source: Wikimedia Commons · https://commons.wikimedia.org/wiki/File:Gilbert_Stuart,_John_Jay,_1794,_NGA_75023.jpg
Public domain — pre-1929; National Gallery of Art
https://commons.wikimedia.org/wiki/File:Gilbert_Stuart,_John_Jay,_1794,_NGA_75023.jpg

FIRST LOOK — before you analyze
Jot 3–4 things you notice in the source (details, words, people, dates). No wrong answers.

HIPPO — analyze the source (prompt)	Your analysis
H — Historical context: what was happening when this was created?	
I — Intended audience: who was meant to see or obey it?	
P — Purpose: why was it created?	

HIPPO — analyze the source (prompt)	Your analysis
P — Point of view: whose perspective does it reflect?	
O — Outside connection: how does it connect to this standard?	

Primary Source Analysis — go deeper — GC.20

SUPPORT OPTION (use if you need it)

Sentence frame: This source shows _____ because it _____, which reveals _____.

SOURCE SYNTHESIS — put it together (SSP.03)

In 2–3 sentences: what does this source reveal about this standard, and how do you know? Cite one specific detail from it.

THINK LIKE A HISTORIAN — corroborate or challenge (SSP.03)

Name ONE other source that could CONFIRM this one, and ONE way it could COMPLICATE or CHALLENGE it — or, whose voice is missing here?

SO WHAT? — why this source still matters today

In 1–2 sentences: why does this source still matter for understanding government today?

CONFIDENCE CHECK-IN

Rate your understanding of this standard (1–4): _____ One thing to revisit:

Activity 6 — Core Application: Practice Quiz — GC.20 ~8 min**RESPONSE CHOICE**

Commit to an answer by marking it, saying it, or explaining it aloud before checking. Answer key is in the Teacher Guide (kept separate).

[DOK 1 · item u5-gc20-dok1-1 · pre-field-test]

After the President nominates a Supreme Court justice, who must confirm the nominee?

- A. The House
- B. The Senate
- C. The states
- D. The current justices

[DOK 2 · item u1-gc20-dok2-tc · pre-field-test]

Which two parts of government share the power to seat a new Supreme Court justice?

- A. The House and the Senate
- B. The President and the Supreme Court
- C. The President nominates and the Senate confirms
- D. The states and the Supreme Court

STRETCH — think like a test-writer (open to all)

Write your OWN DOK-3 question for this standard, then a one-sentence answer key. Use the supports below — everyone can do this.

HOW TO WRITE A DOK-3 QUESTION (supports)

DOK-3 = strategic thinking: the reader must analyze, compare, evaluate, or justify using evidence — and there should be more than one defensible answer (not a fact you can just look up).

Sentence starters: “Why did _____ lead to _____?” · “Which mattered more — _____ or _____ — and why?” · “What is the BEST evidence that _____?” · “Evaluate whether _____.” · “Defend or challenge: _____.”

Frame: [Analyze / Evaluate / Justify] + [something from THIS standard] + “using evidence.”

Quick check: does my question make the reader THINK and use evidence? If yes, it's DOK-3.

NOW WRITE YOUR DOK-3 QUESTION HERE

YOUR ANSWER KEY — one clear, defensible sentence

Activity 7 — Constructed Response (CER) — GC.20 ~15 min

BIG-QUESTION ORGANIZER (before you write) — How can unelected judges check the other branches — and what limits their power?

Plan your argument here, then use it to write your claim, evidence, and reasoning below.

Plan your argument

Your quick notes (from this standard)

My claim (answer the prompt)

Evidence 1 (a source or fact)

Reasoning (why it proves the claim)

CONSTRUCTED RESPONSE (CER) — builds SSP.04 Argumentation

Claim + Evidence + Reasoning: Should Supreme Court confirmations require a simple majority, or a larger supermajority of the Senate? Defend your claim.

Part

Write here

Claim

Evidence (two specifics)

Reasoning

Constructed Response — self-grade & supports — GC.20

SELF-GRADE — score your own CER against the rubric below

Reread your response, then circle the level that best fits each part. Being honest here is how you level up.

Level	Claim	Evidence	Reasoning
4 — Strong	Precise, defensible	2+ accurate, specific	Explains HOW evidence proves the claim
3 — Proficient	Clear	2 accurate	Explains the link
2 — Developing	General	1 accurate	Partial link
1 — Beginning	Unclear / missing	Missing / inaccurate	No reasoning

MY SCORE

Claim: ____ / 4 Evidence: ____ / 4 Reasoning: ____ / 4 TOTAL: ____ / 12

SUPPORTS — sentence frames (use if you need them)

Claim: “_____ because _____.”

Evidence: “One example is _____ (from _____). Another is _____.”

Reasoning: “This proves my claim because _____, which shows _____.”

REVISE — make your lowest-scoring part stronger

Pick the part you scored lowest and rewrite it here — better:

Standard GC.21 — Judicial Review & Marbury v. Madison

TN Academic Standard GC.21: Explain the process of judicial review established by Marbury v. Madison. (H, T)

LEARNING TARGETS — I can...

- I can explain judicial review and how Marbury v. Madison (1803) established it..

Lenses for this standard: History (H) · Tennessee (T)

CORE PATH — the same for every student

Every student works this standard at the same rigor: analyze the sources and vocabulary, then show what you learned on the Practice Quiz and the CER. Check yourself against the learning targets on the Cornell Notes page. Supports for each step are on the back of this page.

SET YOUR GOAL (self-direction)

My goal for this standard — what will I be able to do, and how will I show it? (Need help? See the back of this page.)

HOOK — think before you dig in

The Constitution never says the courts can cancel a law — so how did nine judges claim the power to overrule Congress? One 1803 case answered it forever.

ACTIVATE — what do you already know or wonder?

Jot what you already know or want to find out about this standard. You'll come back to it.

FIRST IMPRESSIONS — before you dig in (you'll revisit this at the end)

In your own words: what do you think this standard is about, and why might it matter to you or your community? Write 2-3 sentences.

Getting Started — supports for this page — GC.21

WHAT “CORE PATH” MEANS

Everyone learns the same standard at the same level. “Support options” are just extra ways in — sentence starters, an example, a partner, or recording your answer. They help you reach the bar; they never lower it.

SET YOUR GOAL — how to write a strong one

Example goal: “By the end of this standard I can explain ___ and prove it by scoring 80%+ on the quiz.”

How to build it: name what you’ll DO, then how you’ll PROVE it, then WHEN.

Sentence starters: “I want to be able to...” “I’ll show it by...” “By the end of this standard...”

HOOK — sentence starters

“I think the big question is...” “This connects to...” “I wonder why...” “At first I believe...”

ACTIVATE — what it means & how to answer

What it means: “Activate” = wake up what you ALREADY know before you learn more.

Sentence starters: “I already know...” “This reminds me of...” “I want to find out...”

FIRST IMPRESSIONS — what to write

Just your honest first take — there is no wrong answer. Say what you THINK the standard is about and why it might matter to you, your family, or your community. You’ll come back and improve it at the end.

KEY WORDS TO WATCH FOR

Judicial Review · Unconstitutional · Precedent

NOW TRY IT — draft your goal using a starter above

Write a first draft here, then copy your best version onto the front. Aim for: what you’ll DO + how you’ll PROVE it + WHEN.

Activity 1 — Vocabulary (Part A: Reference / Word Bank) — GC.21 ~10 min

Use this word bank throughout the standard. The Spanish column supports access, not translation of assessment.

Term	Student-friendly meaning	Spanish
Judicial Review	The power of the courts to declare a law or government action unconstitutional and therefore void — established by Marbury v. Madison.	revisión judicial
Unconstitutional	Conflicting with the Constitution; a law found unconstitutional cannot be enforced.	inconstitucional
Precedent	A court decision that guides how similar cases are decided in the future; Marbury set the precedent of judicial review.	precedente

LANGUAGE SUPPORT

Pronunciations: Judicial Review (joo-DISH-ul ree-VYOO); Unconstitutional (un-kon-stih-TOO-shun-ul); Precedent (PRESS-ih-dent).

VOCABULARY SELF-CHECK • Knowledge Rating

Rate each term NOW in pencil, then again at the END — growth is the goal; no penalty for “never seen it.”

Term	1 • never seen it	2 • heard it	3 • can use it	4 • can teach it
Judicial Review	_____	_____	_____	_____
Unconstitutional	_____	_____	_____	_____
Precedent	_____	_____	_____	_____

MAKE IT YOURS (RESPONSE CHOICE): choose ONE term above and show you own it — write a sentence, sketch it, or give a real-world example.

QUICK WRITE

Which of these terms do you think will matter MOST for this standard, and why? You'll revisit this at the end.

Activity 2 — Vocabulary Studio (Frayer-inspired) — GC.21

~7 min

RESPONSE CHOICE — three ways to complete each studio**WRITE:** fill in the four boxes below in your own words.**SAY IT:** explain the term aloud to a partner or your teacher, or record a short voice note — say the term, its meaning, and one example.**DIAGRAM:** sketch or map the term in the Sketch Studio on the back of this page.**PRIORITY TERM 1 Judicial Review** · ES: revisión judicial**Word-bank meaning to build on:** The power of the courts to declare a law or government action unconstitutional and therefore void — established by Marbury v. Madison.

Definition (in your own words)	Characteristics
Examples	Non-examples

Use it to explain

Write one sentence that uses “Judicial Review” to explain this standard.

PRIORITY TERM 2 Precedent · ES: precedente**Word-bank meaning to build on:** A court decision that guides how similar cases are decided in the future; Marbury set the precedent of judicial review.

Definition (in your own words)	Characteristics
Examples	Non-examples

Use it to explain

Write one sentence that uses “Precedent” to explain this standard.

CONNECT THE TERMS (UDL · build understanding)

How do these priority terms fit together? Write how one leads to or affects another on the lines — or map it in the Sketch Studio on the back.

Activity 2 — Sketch Studio (draw it or say it) — GC.21

SAY IT — pick one way to explain your terms aloud

Explain each priority term to a shoulder partner, then have them explain one back to you.

Or explain a term to your teacher during check-in.

Or record a 20–30 second voice note: say the term, what it means, and one real example.

Or stand and share one term with the class.

DIAGRAM: Judicial Review

Draw, map, or symbolize this term — a picture, an icon, a quick web, or an example scene. Label your drawing.

DIAGRAM: Precedent

Draw, map, or symbolize this term — a picture, an icon, a quick web, or an example scene. Label your drawing.

CONNECT THE TERMS — concept map

Put both terms in the box and draw arrows to show how one leads to, needs, or affects the other. Write a few words on each arrow.

Activity 3 — Direct Teaching Cornell Notes — GC.21 ~20 min

GC.21 — Judicial Review & Marbury v. Madison • Lean Student Deck slides 2-8 • direct-teaching slides 4-6

Your learning targets are on this standard's opening page — take notes that help you meet them.

Guiding cues	My notes — write your notes here
Key idea of this standard?	
One source that supports it?	
One check the courts provide?	
Key terms →	

DOODLE ZONE — draw your thinking (UDL · another way in)

Need another way in? Sketch the key idea, a quick timeline, or how the pieces connect. Words optional.

Cornell Notes — keep going, then process & check — GC.21

UDL · CHOOSE HOW YOU CAPTURE IDEAS (same target for everyone)

Keep going with your notes: WRITE on the lines, DRAW or diagram in the box, or do both — your choice. You may also record your notes aloud.

DRAW / DIAGRAM — sketch the idea, a timeline, or how the pieces connect

WRITE — keep taking notes on the lines

Key terms to list

Judicial Review · Unconstitutional · Precedent

Summary — In your own words (2-3 sentences)

PROGRESS CHECK · one question

What power did Marbury v. Madison (1803) establish for the courts?

- A. The power to elect the President
- B. Judicial review — the power to declare a law unconstitutional and void
- C. The power to collect taxes
- D. The power to declare war

Commit before you move on — mark it, say it, or explain it aloud.

CHECK YOURSELF — how am I doing?

Which learning targets (on this standard's opening page) can you now meet? Tick the number; circle any you still need help with.

☐ **1**

My 12-15 word headline for this standard

Guided Support for the Cornell Notes — GC.21

These scaffolds support ONLY the Cornell notes — use them to take and process those notes. Optional and easy to set aside; not a separate assignment or a label.

Key vocabulary	What it means
Judicial Review	The power of the courts to declare a law or government action unconstitutional and therefore void — established by Marbury v. Madison.
Unconstitutional	Conflicting with the Constitution; a law found unconstitutional cannot be enforced.
Precedent	A court decision that guides how similar cases are decided in the future; Marbury set the precedent of judicial review.

Break it into steps:

1) Name one cause or effect. 2) Give one piece of evidence. 3) Write one sentence explaining the link.

Sentence frame

One key cause/effect of judicial review & marbury v. madison was _____, shown by _____, which mattered because _____.

Modeled example (one worked note — yours will differ)

A key idea of judicial review & marbury v. madison was Judicial Review: The power of the courts to declare a law or government action unconstitutional and therefore void — established by Marbury v. Madison.

GUIDED NOTE REHEARSAL LAB — practice ONE note, step by step

Build one good note here first, then copy it onto your Cornell page. Name the idea → give one piece of evidence → explain the link → write a short headline.

Step	Rehearse it here
Name it	_____ _____
Evidence	_____ _____
Explain	_____ _____
Headline	_____ _____

TRANSFER CHECK — move one rehearsed idea onto the front notes

Light Support for the Cornell Notes — GC.21

A lighter scaffold for the SAME Cornell notes. Try the notes first; reach for this only if you need it.

Key vocabulary	Finish the idea — “This term means ...”
Judicial Review	
Unconstitutional	
Precedent	

Guiding questions — answer on the lines below (or in your front notes):

- According to Marshall, whose job is it 'to say what the law is'?
- Why does Marshall conclude that a law conflicting with the Constitution must be void?
- How did Marbury v. Madison change the power of the judicial branch?

WHICH CUE STILL NEEDS WORK?

Circle the Cornell cue from the front page you still need help with, and tell your teacher so we can go over it.

LIGHT PROCESSING LAB

Answer one guiding question from above in a full sentence, in your own words.

Activity 4 — Close Read — GC.21 ~15 min

Reading type: Government Hack-authored instructional synthesis. This is not a primary source. Builds SSP.03 (synthesize) and SSP.05 (historical awareness).

CORE PATH

The Constitution never explicitly says the courts can strike down a law — the Supreme Court claimed that power itself, in *Marbury v. Madison* (1803). In a dispute over a last-minute judicial appointment, Chief Justice John Marshall reasoned that when a law conflicts with the Constitution, the Constitution must win, because it is the supreme law. 'It is emphatically the province and duty of the judicial department to say what the law is,' he wrote, and 'a law repugnant to the constitution is void.' With that, Marshall established judicial review — the power of courts to declare laws and government actions unconstitutional. It made the judiciary a true check on the other branches and set the precedent that still governs how the Court operates. A branch that controls neither the army nor the budget gained the last word on what the Constitution means.

LANGUAGE SUPPORT

Key terms to know first: Judicial Review, Unconstitutional. Read once for the gist, then again for evidence.

Text-dependent questions (answer in the Evidence Lab below or aloud):

1. According to Marshall, whose job is it 'to say what the law is'?
2. Why does Marshall conclude that a law conflicting with the Constitution must be void?
3. How did *Marbury v. Madison* change the power of the judicial branch?

RESPONSE CHOICE: answer any question by writing in the Evidence Lab, saying/recording it, or diagramming it.

CLOSE-READ EVIDENCE LAB

Log evidence from the passage below.

Question / claim	Exact passage evidence	What the evidence shows

In one sentence — the main idea of this reading:

Spaced Retrieval & Reflection — GC.21

SPACED RETRIEVAL — quick recall (no notes)

Pull it up cold to strengthen memory, then check your notes — retrieval is what makes learning stick.

Recall prompt

Your answer (from memory)

One key term or fact from THIS standard

One thing you learned in an EARLIER standard — how does it connect?

One question you can answer now that you could not before

CHECK YOURSELF — look back and score how it went

Got it right? ☐ Yes ☐ Partly ☐ Not yet **Answer it from memory?** ☐ Yes ☐ With a hint ☐ No

How did it feel? ☐ Confident ☐ Getting there ☐ Shaky — I'll revisit

CONNECT IT — spiral back

How does this standard connect to one you studied earlier, or to something in the world today? Write 2-3 sentences.

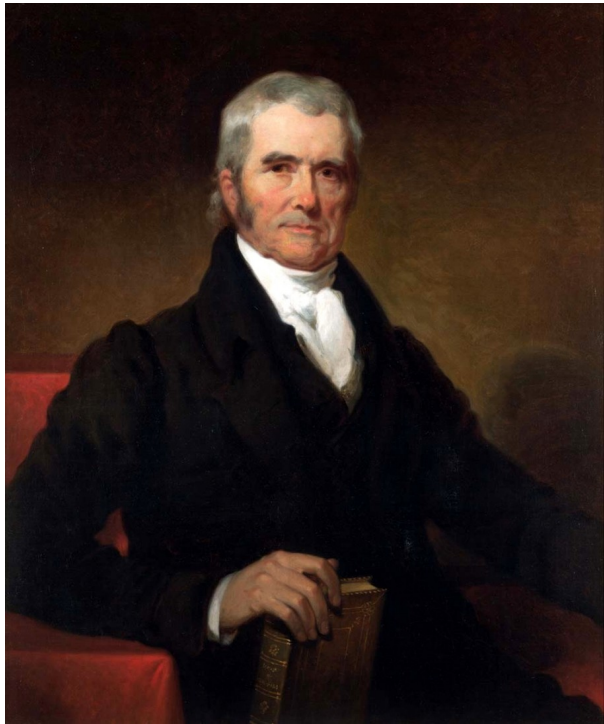
WHERE AM I? — plan your next step

Rate your understanding of this standard (1-4): ☐ 1 ☐ 2 ☐ 3 ☐ 4

One thing I will review or ask about before the quiz:

Activity 5 — Primary Source / Data Analysis — GC.21 ⌚ ~15 min

Primary source (portrait) — analyze it with HIPPO. Builds SSP.01–SSP.02.



Chief Justice John Marshall (judicial review / Marbury) • (artist unconfirmed) • 19th c.

Source: Wikimedia Commons • https://commons.wikimedia.org/wiki/File:Chief_Justice_John_Marshall.jpg Public domain — portrait pre-1929 (Marshall d.1835) https://commons.wikimedia.org/wiki/File:Chief_Justice_John_Marshall.jpg

FIRST LOOK — before you analyze

Jot 3–4 things you notice in the source (details, words, people, dates). No wrong answers.

HIPPO — analyze the source (prompt)	Your analysis
H — Historical context: what was happening when this was created?	
I — Intended audience: who was meant to see or obey it?	
P — Purpose: why was it created?	

HIPPO — analyze the source (prompt)	Your analysis
P — Point of view: whose perspective does it reflect?	
O — Outside connection: how does it connect to this standard?	

Primary Source Analysis — go deeper — GC.21

SUPPORT OPTION (use if you need it)

Sentence frame: This source shows _____ because it _____, which reveals _____.

SOURCE SYNTHESIS — put it together (SSP.03)

In 2–3 sentences: what does this source reveal about this standard, and how do you know? Cite one specific detail from it.

THINK LIKE A HISTORIAN — corroborate or challenge (SSP.03)

Name ONE other source that could CONFIRM this one, and ONE way it could COMPLICATE or CHALLENGE it — or, whose voice is missing here?

SO WHAT? — why this source still matters today

In 1–2 sentences: why does this source still matter for understanding government today?

CONFIDENCE CHECK-IN

Rate your understanding of this standard (1–4): _____ One thing to revisit:

Activity 6 — Core Application: Practice Quiz — GC.21 ~8 min**RESPONSE CHOICE**

Commit to an answer by marking it, saying it, or explaining it aloud before checking. Answer key is in the Teacher Guide (kept separate).

[DOK 1 • item u5-gc21-dok1-1 • pre-field-test]

The 1803 case that established judicial review was:

- A. McCulloch v. Maryland
- B. Baker v. Carr
- C. Marbury v. Madison
- D. Plessy v. Ferguson

[DOK 3 • item u1-gc21-dok3-tc • pre-field-test]

What power did Marbury v. Madison (1803) establish for the courts?

- A. The power to elect the President
- B. Judicial review — the power to declare a law unconstitutional and void
- C. The power to collect taxes
- D. The power to declare war

STRETCH — think like a test-writer (open to all)

Write your OWN DOK-3 question for this standard, then a one-sentence answer key. Use the supports below — everyone can do this.

HOW TO WRITE A DOK-3 QUESTION (supports)

DOK-3 = strategic thinking: the reader must analyze, compare, evaluate, or justify using evidence — and there should be more than one defensible answer (not a fact you can just look up).

Sentence starters: “Why did _____ lead to _____?” • “Which mattered more — _____ or _____ — and why?” • “What is the BEST evidence that _____?” • “Evaluate whether _____.” • “Defend or challenge: _____.”

Frame: [Analyze / Evaluate / Justify] + [something from THIS standard] + “using evidence.”

Quick check: does my question make the reader THINK and use evidence? If yes, it's DOK-3.

NOW WRITE YOUR DOK-3 QUESTION HERE

YOUR ANSWER KEY — one clear, defensible sentence

Activity 7 — Constructed Response (CER) — GC.21 ⌚ ~15 min**BIG-QUESTION ORGANIZER (before you write) — How can unelected judges check the other branches — and what limits their power?**

Plan your argument here, then use it to write your claim, evidence, and reasoning below.

Plan your argument	Your quick notes (from this standard)
My claim (answer the prompt)	
Evidence 1 (a source or fact)	
Reasoning (why it proves the claim)	

CONSTRUCTED RESPONSE (CER) — builds SSP.04 Argumentation

Claim + Evidence + Reasoning: Was Marshall right to claim the power of judicial review, even though the Constitution does not list it? Defend your claim with evidence from the opinion.

Part	Write here
Claim	
Evidence (two specifics)	
Reasoning	

Constructed Response — self-grade & supports — GC.21

SELF-GRADE — score your own CER against the rubric below

Reread your response, then circle the level that best fits each part. Being honest here is how you level up.

Level	Claim	Evidence	Reasoning
4 — Strong	Precise, defensible	2+ accurate, specific	Explains HOW evidence proves the claim
3 — Proficient	Clear	2 accurate	Explains the link
2 — Developing	General	1 accurate	Partial link
1 — Beginning	Unclear / missing	Missing / inaccurate	No reasoning

MY SCORE

Claim: ____ / 4 Evidence: ____ / 4 Reasoning: ____ / 4 TOTAL: ____ / 12

SUPPORTS — sentence frames (use if you need them)

Claim: “_____ because _____.”

Evidence: “One example is _____ (from _____). Another is _____.”

Reasoning: “This proves my claim because _____, which shows _____.”

REVISE — make your lowest-scoring part stronger

Pick the part you scored lowest and rewrite it here — better:

Standard GC.22 — Deciding What Is Constitutional

TN Academic Standard GC.22: Describe the Supreme Court's role in determining the constitutionality of laws and acts of the legislative and executive branches. (T)

LEARNING TARGETS — I can...

- I can describe how the Supreme Court decides constitutionality, and explain judicial activism and restraint..

Lenses for this standard: Tennessee (T)

CORE PATH — the same for every student

Every student works this standard at the same rigor: analyze the sources and vocabulary, then show what you learned on the Practice Quiz and the CER. Check yourself against the learning targets on the Cornell Notes page. Supports for each step are on the back of this page.

SET YOUR GOAL (self-direction)

My goal for this standard — what will I be able to do, and how will I show it? (Need help? See the back of this page.)

HOOK — think before you dig in

Thousands of cases ask the Supreme Court for a hearing each year; it takes only about 60. Who decides which — and how boldly should they rule once they do?

ACTIVATE — what do you already know or wonder?

Jot what you already know or want to find out about this standard. You'll come back to it.

FIRST IMPRESSIONS — before you dig in (you'll revisit this at the end)

In your own words: what do you think this standard is about, and why might it matter to you or your community? Write 2-3 sentences.

Getting Started — supports for this page — GC.22

WHAT “CORE PATH” MEANS

Everyone learns the same standard at the same level. “Support options” are just extra ways in — sentence starters, an example, a partner, or recording your answer. They help you reach the bar; they never lower it.

SET YOUR GOAL — how to write a strong one

Example goal: “By the end of this standard I can explain ___ and prove it by scoring 80%+ on the quiz.”

How to build it: name what you’ll DO, then how you’ll PROVE it, then WHEN.

Sentence starters: “I want to be able to...” “I’ll show it by...” “By the end of this standard...”

HOOK — sentence starters

“I think the big question is...” “This connects to...” “I wonder why...” “At first I believe...”

ACTIVATE — what it means & how to answer

What it means: “Activate” = wake up what you ALREADY know before you learn more.

Sentence starters: “I already know...” “This reminds me of...” “I want to find out...”

FIRST IMPRESSIONS — what to write

Just your honest first take — there is no wrong answer. Say what you THINK the standard is about and why it might matter to you, your family, or your community. You’ll come back and improve it at the end.

KEY WORDS TO WATCH FOR

Writ of Certiorari · Judicial Activism · Judicial Restraint

NOW TRY IT — draft your goal using a starter above

Write a first draft here, then copy your best version onto the front. Aim for: what you’ll DO + how you’ll PROVE it + WHEN.

Activity 1 — Vocabulary (Part A: Reference / Word Bank) — GC.22 ~10 min

Use this word bank throughout the standard. The Spanish column supports access, not translation of assessment.

Term	Student-friendly meaning	Spanish
Writ of Certiorari	An order by which the Supreme Court agrees to hear a case; it takes the 'rule of four' — four of the nine justices — to grant it.	auto de avocación (certiorari)
Judicial Activism	An approach in which judges are more willing to strike down laws or set new policy, often reading the Constitution as a 'living document.'	activismo judicial
Judicial Restraint	An approach in which judges defer to the elected branches and to precedent, interpreting the Constitution narrowly by its 'original intent.'	moderación judicial

LANGUAGE SUPPORT

Pronunciations: Writ of Certiorari (sur-shee-uh-RAIR-ee); Judicial Activism (AK-tiv-iz-um); Judicial Restraint (ree-STRAYNT).

VOCABULARY SELF-CHECK · Knowledge Rating

Rate each term NOW in pencil, then again at the END — growth is the goal; no penalty for “never seen it.”

Term	1 · never seen it	2 · heard it	3 · can use it	4 · can teach it
Writ of Certiorari	_____	_____	_____	_____
Judicial Activism	_____	_____	_____	_____
Judicial Restraint	_____	_____	_____	_____

MAKE IT YOURS (RESPONSE CHOICE): choose ONE term above and show you own it — write a sentence, sketch it, or give a real-world example.

QUICK WRITE

Which of these terms do you think will matter MOST for this standard, and why? You'll revisit this at the end.

Activity 2 — Vocabulary Studio (Frayer-inspired) — GC.22

~7 min

RESPONSE CHOICE — three ways to complete each studio**WRITE:** fill in the four boxes below in your own words.**SAY IT:** explain the term aloud to a partner or your teacher, or record a short voice note — say the term, its meaning, and one example.**DIAGRAM:** sketch or map the term in the Sketch Studio on the back of this page.**PRIORITY TERM 1 Judicial Activism** · ES: activismo judicial**Word-bank meaning to build on:** An approach in which judges are more willing to strike down laws or set new policy, often reading the Constitution as a 'living document.'

Definition (in your own words)	Characteristics
Examples	Non-examples

Use it to explain

Write one sentence that uses “Judicial Activism” to explain this standard.

PRIORITY TERM 2 Judicial Restraint · ES: moderación judicial**Word-bank meaning to build on:** An approach in which judges defer to the elected branches and to precedent, interpreting the Constitution narrowly by its 'original intent.'

Definition (in your own words)	Characteristics
Examples	Non-examples

Use it to explain

Write one sentence that uses “Judicial Restraint” to explain this standard.

CONNECT THE TERMS (UDL • build understanding)

How do these priority terms fit together? Write how one leads to or affects another on the lines — or map it in the Sketch Studio on the back.

Activity 2 — Sketch Studio (draw it or say it) — GC.22

SAY IT — pick one way to explain your terms aloud

Explain each priority term to a shoulder partner, then have them explain one back to you.

Or explain a term to your teacher during check-in.

Or record a 20–30 second voice note: say the term, what it means, and one real example.

Or stand and share one term with the class.

DIAGRAM: Judicial Activism

Draw, map, or symbolize this term — a picture, an icon, a quick web, or an example scene. Label your drawing.

DIAGRAM: Judicial Restraint

Draw, map, or symbolize this term — a picture, an icon, a quick web, or an example scene. Label your drawing.

CONNECT THE TERMS — concept map

Put both terms in the box and draw arrows to show how one leads to, needs, or affects the other. Write a few words on each arrow.

Activity 3 — Direct Teaching Cornell Notes — GC.22 ~20 min

GC.22 — Deciding What Is Constitutional • Lean Student Deck slides 2-8 • direct-teaching slides 4-6

Your learning targets are on this standard's opening page — take notes that help you meet them.

Guiding cues	My notes — write your notes here
Key idea of this standard?	
One source that supports it?	
One check the courts provide?	
Key terms →	

DOODLE ZONE — draw your thinking (UDL · another way in)

Need another way in? Sketch the key idea, a quick timeline, or how the pieces connect. Words optional.

Cornell Notes — keep going, then process & check — GC.22

UDL · CHOOSE HOW YOU CAPTURE IDEAS (same target for everyone)

Keep going with your notes: WRITE on the lines, DRAW or diagram in the box, or do both — your choice. You may also record your notes aloud.

DRAW / DIAGRAM — sketch the idea, a timeline, or how the pieces connect

WRITE — keep taking notes on the lines

Key terms to list

Writ of Certiorari · Judicial Activism · Judicial Restraint

Summary — In your own words (2-3 sentences)

PROGRESS CHECK · one question

How do judicial activism and judicial restraint differ?

- A. Activism means judges never rule; restraint means they rule on everything
- B. Activism applies only to state courts; restraint only to federal courts
- C. They are two names for the same approach
- D. Activism is a greater willingness to strike down laws or set new policy; restraint defers to the elected branches and precedent

Commit before you move on — mark it, say it, or explain it aloud.

CHECK YOURSELF — how am I doing?

Which learning targets (on this standard's opening page) can you now meet? Tick the number; circle any you still need help with.

☐ **1**

My 12-15 word headline for this standard

Guided Support for the Cornell Notes — GC.22

These scaffolds support ONLY the Cornell notes — use them to take and process those notes. Optional and easy to set aside; not a separate assignment or a label.

Key vocabulary	What it means
Writ of Certiorari	An order by which the Supreme Court agrees to hear a case; it takes the 'rule of four' — four of the nine justices — to grant it.
Judicial Activism	An approach in which judges are more willing to strike down laws or set new policy, often reading the Constitution as a 'living document.'
Judicial Restraint	An approach in which judges defer to the elected branches and to precedent, interpreting the Constitution narrowly by its 'original intent.'

Break it into steps:

1) Name one cause or effect. 2) Give one piece of evidence. 3) Write one sentence explaining the link.

Sentence frame

One key cause/effect of deciding what is constitutional was _____, shown by _____, which mattered because _____.

Modeled example (one worked note — yours will differ)

A key idea of deciding what is constitutional was Writ of Certiorari: An order by which the Supreme Court agrees to hear a case; it takes the 'rule of four' — four of the nine justices — to grant it.

GUIDED NOTE REHEARSAL LAB — practice ONE note, step by step

Build one good note here first, then copy it onto your Cornell page. Name the idea → give one piece of evidence → explain the link → write a short headline.

Step	Rehearse it here
Name it	_____ _____
Evidence	_____ _____
Explain	_____ _____
Headline	_____ _____

TRANSFER CHECK — move one rehearsed idea onto the front notes

Light Support for the Cornell Notes — GC.22

A lighter scaffold for the SAME Cornell notes. Try the notes first; reach for this only if you need it.

Key vocabulary	Finish the idea — “This term means ...”
Writ of Certiorari	
Judicial Activism	
Judicial Restraint	

Guiding questions — answer on the lines below (or in your front notes):

- How does a case actually reach the Supreme Court (cert and the 'rule of four')?
- Contrast judicial activism and judicial restraint using an example of each.
- How does the Supremacy Clause support the Court's power to strike down conflicting laws?

WHICH CUE STILL NEEDS WORK?

Circle the Cornell cue from the front page you still need help with, and tell your teacher so we can go over it.

LIGHT PROCESSING LAB

Answer one guiding question from above in a full sentence, in your own words.

Activity 4 — Close Read — GC.22 ⌚ ~15 min

Reading type: Government Hack-authored instructional synthesis. This is not a primary source. Builds SSP.03 (synthesize) and SSP.05 (historical awareness).

CORE PATH

Because Marbury established judicial review, the Supreme Court is the final judge of whether a law or executive act is constitutional. Getting there is selective: after losing in lower courts, a party petitions for a writ of certiorari, and it takes the 'rule of four' — four of the nine justices — for the Court to take the case. When the Court rules, it does not just settle that dispute; it sets precedent for the whole country. How boldly the Court should use this power is contested. Judges who practice judicial activism are more willing to strike down laws or set new policy, often treating the Constitution as a 'living document' that adapts to the times. Judges who practice judicial restraint defer to the elected branches and to precedent, reading the Constitution by its 'original intent.' The Warren, Burger, Rehnquist, and Roberts Courts are often placed along this spectrum. As Marshall put it, 'the constitution controls any legislative act repugnant to it' — but reasonable people still argue over what the Constitution requires.

LANGUAGE SUPPORT

Key terms to know first: Writ of Certiorari, Judicial Activism. Read once for the gist, then again for evidence.

Text-dependent questions (answer in the Evidence Lab below or aloud):

1. How does a case actually reach the Supreme Court (cert and the 'rule of four')?
2. Contrast judicial activism and judicial restraint using an example of each.
3. How does the Supremacy Clause support the Court's power to strike down conflicting laws?

RESPONSE CHOICE: answer any question by writing in the Evidence Lab, saying/recording it, or diagramming it.

CLOSE-READ EVIDENCE LAB

Log evidence from the passage below.

Question / claim	Exact passage evidence	What the evidence shows

In one sentence — the main idea of this reading:

Spaced Retrieval & Reflection — GC.22

SPACED RETRIEVAL — quick recall (no notes)

Pull it up cold to strengthen memory, then check your notes — retrieval is what makes learning stick.

Recall prompt

Your answer (from memory)

One key term or fact from THIS standard

One thing you learned in an EARLIER standard — how does it connect?

One question you can answer now that you could not before

CHECK YOURSELF — look back and score how it went

Got it right? ☐ Yes ☐ Partly ☐ Not yet **Answer it from memory?** ☐ Yes ☐ With a hint ☐ No

How did it feel? ☐ Confident ☐ Getting there ☐ Shaky — I'll revisit

CONNECT IT — spiral back

How does this standard connect to one you studied earlier, or to something in the world today? Write 2-3 sentences.

WHERE AM I? — plan your next step

Rate your understanding of this standard (1-4): ☐ 1 ☐ 2 ☐ 3 ☐ 4

One thing I will review or ask about before the quiz:

Activity 5 — Primary Source / Data Analysis — GC.22 ⌚ ~15 min

Primary source (photo) — analyze it with HIPPO. Builds SSP.01–SSP.02.



U.S. Supreme Court Building · Ken Hammond (USDA) · modern

Source: Wikimedia Commons · https://commons.wikimedia.org/wiki/File:Supreme_Court.jpg Public domain — U.S. federal (USDA) work https://commons.wikimedia.org/wiki/File:Supreme_Court.jpg

FIRST LOOK — before you analyze

Jot 3–4 things you notice in the source (details, words, people, dates). No wrong answers.

HIPPO — analyze the source (prompt)	Your analysis
H — Historical context: what was happening when this was created?	
I — Intended audience: who was meant to see or obey it?	
P — Purpose: why was it created?	
P — Point of view: whose perspective does it reflect?	

HIPPO — analyze the source (prompt)	Your analysis
O — Outside connection: how does it connect to this standard?	

Primary Source Analysis — go deeper — GC.22

SUPPORT OPTION (use if you need it)

Sentence frame: This source shows _____ because it _____, which reveals _____.

SOURCE SYNTHESIS — put it together (SSP.03)

In 2–3 sentences: what does this source reveal about this standard, and how do you know? Cite one specific detail from it.

THINK LIKE A HISTORIAN — corroborate or challenge (SSP.03)

Name ONE other source that could CONFIRM this one, and ONE way it could COMPLICATE or CHALLENGE it — or, whose voice is missing here?

SO WHAT? — why this source still matters today

In 1–2 sentences: why does this source still matter for understanding government today?

CONFIDENCE CHECK-IN

Rate your understanding of this standard (1–4): _____ One thing to revisit:

Activity 6 — Core Application: Practice Quiz — GC.22 ⌚ ~8 min**RESPONSE CHOICE**

Commit to an answer by marking it, saying it, or explaining it aloud before checking. Answer key is in the Teacher Guide (kept separate).

[DOK 1 • item u5-gc22-dok1-1 • pre-field-test]

The number of justices needed to agree to hear a case (grant certiorari) is:

- A. Four
- B. Five
- C. Six
- D. Nine

[DOK 3 • item u1-gc22-dok3-tc • pre-field-test]

How do judicial activism and judicial restraint differ?

- A. Activism means judges never rule; restraint means they rule on everything
- B. Activism applies only to state courts; restraint only to federal courts
- C. They are two names for the same approach
- D. Activism is a greater willingness to strike down laws or set new policy; restraint defers to the elected branches and precedent

STRETCH — think like a test-writer (open to all)

Write your OWN DOK-3 question for this standard, then a one-sentence answer key. Use the supports below — everyone can do this.

HOW TO WRITE A DOK-3 QUESTION (supports)

DOK-3 = strategic thinking: the reader must analyze, compare, evaluate, or justify using evidence — and there should be more than one defensible answer (not a fact you can just look up).

Sentence starters: “Why did _____ lead to _____?” • “Which mattered more — _____ or _____ — and why?” • “What is the BEST evidence that _____?” • “Evaluate whether _____.” • “Defend or challenge: _____.”

Frame: [Analyze / Evaluate / Justify] + [something from THIS standard] + “using evidence.”

Quick check: does my question make the reader THINK and use evidence? If yes, it's DOK-3.

NOW WRITE YOUR DOK-3 QUESTION HERE

YOUR ANSWER KEY — one clear, defensible sentence

Activity 7 — Constructed Response (CER) — GC.22 ⌚ ~15 min**BIG-QUESTION ORGANIZER (before you write) — How can unelected judges check the other branches — and what limits their power?**

Plan your argument here, then use it to write your claim, evidence, and reasoning below.

Plan your argument

Your quick notes (from this standard)

My claim (answer the prompt)**Evidence 1 (a source or fact)****Reasoning (why it proves the claim)****CONSTRUCTED RESPONSE (CER) — builds SSP.04 Argumentation**

Claim + Evidence + Reasoning: Should the Supreme Court favor judicial activism (a 'living Constitution') or judicial restraint ('original intent')? Defend your claim with a court-case example.

Part**Write here****Claim****Evidence (two specifics)****Reasoning**

Constructed Response — self-grade & supports — GC.22

SELF-GRADE — score your own CER against the rubric below

Reread your response, then circle the level that best fits each part. Being honest here is how you level up.

Level	Claim	Evidence	Reasoning
4 — Strong	Precise, defensible	2+ accurate, specific	Explains HOW evidence proves the claim
3 — Proficient	Clear	2 accurate	Explains the link
2 — Developing	General	1 accurate	Partial link
1 — Beginning	Unclear / missing	Missing / inaccurate	No reasoning

MY SCORE

Claim: ____ / 4 Evidence: ____ / 4 Reasoning: ____ / 4 TOTAL: ____ / 12

SUPPORTS — sentence frames (use if you need them)

Claim: “_____ because _____.”

Evidence: “One example is _____ (from _____). Another is _____.”

Reasoning: “This proves my claim because _____, which shows _____.”

REVISE — make your lowest-scoring part stronger

Pick the part you scored lowest and rewrite it here — better:

Your Tennessee Connection

★ TENNESSEE CONNECTION

Tennessee has sat on the nation's highest bench. John Catron, who had served as Chief Justice of Tennessee's own Supreme Court, was appointed to the U.S. Supreme Court in 1837 and served until his death in Nashville in 1865 — the first Tennessean to help decide what the Constitution means (GC.20).

Reflect (RESPONSE CHOICE): How does a Tennessee connection change the way you understand a national idea? Answer by writing, recording, or diagramming.

Tennessee Civics Investigation

A Tennessean once helped shape the U.S. Supreme Court. Investigate the current Tennessee Supreme Court — name one current justice and one type of case it hears — and record what you find with a source.

Prompt	Your findings
A Tennessee example connected to this unit	

Prompt	Your findings
One source I could check (library, TN Secretary of State, TSLA, a representative's office)	
How it connects to a standard in this unit	
One question I still have	

Progress Tracker & Cumulative Review

Track your Progress Check result for each standard and note one thing to revisit.

Standard	Progress Check (✓ / reteach)	One thing to revisit
GC.19		
GC.20		
GC.21		
GC.22		

Optional Extension Bank (higher-DOK, open to all)

Any student may choose an extension. These are EXTENSION, not a track.

GC.19: Is life tenure for federal judges a strength or a danger for democracy? Defend your claim with evidence.

GC.20: Should Supreme Court confirmations require a simple majority, or a larger supermajority of the Senate? Defend your claim.

GC.21: Was Marshall right to claim the power of judicial review, even though the Constitution does not list it? Defend your claim with evidence from the opinion.

GC.22: Should the Supreme Court favor judicial activism (a 'living Constitution') or judicial restraint ('original intent')? Defend your claim with a court-case example.

Reusable Toolkit & Source Library

Written Response Rubric (CER)

Level	Claim	Evidence	Reasoning
4 — Strong	Precise, defensible	2+ accurate, specific	Explains how evidence proves the claim
3 — Proficient	Clear	2 accurate	Explains the link

Level	Claim	Evidence	Reasoning
2 — Developing	General	1 accurate	Partial link
1 — Beginning	Unclear/missing	Missing/inaccurate	No reasoning

Source Library — full citations & clickable links

GC.19 — Article III & Judicial Power

U.S. Constitution, Article III, Section 1. Constitutional Convention, 1787. U.S. National Archives. Public domain. <https://www.archives.gov/founding-docs/constitution-transcript>

U.S. Constitution, Article III, Section 2. Constitutional Convention, 1787. U.S. National Archives. Public domain. <https://www.archives.gov/founding-docs/constitution-transcript>

GC.20 — Selecting & Confirming Justices

U.S. Constitution, Article II, Section 2. Constitutional Convention, 1787. U.S. National Archives. Public domain. <https://www.archives.gov/founding-docs/constitution-transcript>

U.S. Constitution, Article III, Section 1. Constitutional Convention, 1787. U.S. National Archives. Public domain. <https://www.archives.gov/founding-docs/constitution-transcript>

GC.21 — Judicial Review & Marbury v. Madison

Marbury v. Madison, 5 U.S. 137. Chief Justice John Marshall, 1803. U.S. Reports (Justia). Public domain. <https://supreme.justia.com/cases/federal/us/5/137/>

Marbury v. Madison, 5 U.S. 137 (holding). Chief Justice John Marshall, 1803. U.S. Reports (Justia). Public domain. <https://supreme.justia.com/cases/federal/us/5/137/>

GC.22 — Deciding What Is Constitutional

Marbury v. Madison, 5 U.S. 137. Chief Justice John Marshall, 1803. U.S. Reports (Justia). Public domain. <https://supreme.justia.com/cases/federal/us/5/137/>

U.S. Constitution, Article VI (Supremacy Clause). Constitutional Convention, 1787. U.S. National Archives. Public domain. <https://www.archives.gov/founding-docs/constitution-transcript>

Who Guards the Constitution? Perspectives on Judicial Power

This section weighs the paradox of an unelected branch with the power to overturn the elected ones: a guardian of rights to some, a check that can overreach to others. It is Government Hack-authored instructional synthesis grounded in this unit's sourced record — not a primary source.

The Guardian of Rights

Because justices are not elected and serve for life, the Court can protect minority rights and the Constitution even when the majority objects (GC.21, GC.22).

The Countermajoritarian Worry

Others argue that letting nine unelected judges overturn laws passed by elected representatives is in tension with democracy (GC.21).

Activism vs. Restraint

Should judges read the Constitution as a 'living document' that adapts, or interpret the 'original intent' of the Framers? The debate shapes every major ruling (GC.22).

The Appointment Fight

Because a justice can serve for decades, the President's nomination and the Senate's confirmation have become high-stakes political battles (GC.20).

Unit Reflection

Return to the unit's big question: How can unelected judges check the other branches — and what limits their power? Write a final claim with two pieces of evidence from different standards.

Part	Write here
My claim	
Evidence 1 (standard: __)	
Evidence 2 (standard: __)	
Why it matters today	